

party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 8:1047.

The motion is **GRANTED** as to this interrogatory and a further response shall be made as ordered below.

Sanctions

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds “substantial justification” for that party’s position or other circumstances making the sanction “unjust.” Code Civ. Proc. §§ 2030.300(d); see Weil & Brown, § 1920.

In addition, a failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered and denies the imposition of sanctions against either the moving or responding party. Kaiser raised some objections that were substantially justified although it ultimately did not prevail on them for the reasons discussed above. The Court is also mindful of the substantial meet and confer efforts made by both sides to resolve the matter overall. Therefore, the Court concludes that sanctions are not appropriate or justified. However, the Court reserves jurisdiction to consider the issue of sanctions further and to impose sanctions if there is non-compliance with the orders made herein by the Court.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Response is **GRANTED**, as set forth further above.
2. Kaiser shall serve a verified further amended response to the Discovery Request at Issue within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The moving party shall prepare the order after hearing for the Court’s review and approval.

17. 9:01 AM CASE NUMBER: C25-02936

CASE NAME: SYLVIA HOLDEN VS. SFS 39 INC.

MOTION TO QUASH CONTINUED FROM 7/27/26

FILED BY: PLAINTIFF SYLVIA HOLDEN

TENTATIVE RULING:

Plaintiff Sylvia Holden (“Plaintiff”) filed a motion seeking to quash or limit a subpoena for production of medical records on January 30, 2026 (the “Motion to Quash”). The Motion to Quash was set for hearing on July 27, 2026. The motion is opposed.

Background

Defendant SFS 39 Inc. (“Plaintiff”) issued a subpoena to Kaiser Foundation Health Plan, Inc. dated January 15, 2026 seeking the following medical records for Plaintiff (collectively, the “Subpoenaed Medical Records”):

DOCUMENTS TO BE PRODUCED

1. All chart notes, records, and reports related to Plaintiff Sylvia Holden (SSN xxx-xx-1550; DOB 05-22-1970), including, but not limited to, all medical records and other documents referencing or related to Claimant's physical, mental, and/or emotional condition and treatment from January 1, 2016 through the present.

See Declaration of Vincent Calderone filed as part of Motion to Quash ("Calderone Decl.") ¶2 and **Exhibit A** thereto, p. 5 (Attachment 3).

Plaintiff objected to the scope of the Subpoenaed Medical Records sought and engaged in meet and confer efforts which did not resolve the matter. Calderone Decl., ¶3 *et seq.*

Plaintiff subsequently filed the Motion to Quash. In connection with Case Management Conference (CMC) proceedings, the Court ordered the parties to meet and confer regarding the motion. See Order entered April 6, 2026.

Opposition papers were filed on July 14, 2026.

At the July 27, 2026 hearing, the parties were ordered to engage in further meet and confer regarding resolution of the Motion to Quash. If not resolved through such informal talks, the parties were ordered to prepare and submit a Joint Statement as to any remaining issues in dispute. See Order entered July 29, 2026.

The parties filed their Joint Statement on August 24, 2026.

The City filed an opposition on July 21, 2026 (the "Opposition").

Plaintiff filed a reply on July 16, 2026 (the "Reply").

Analysis

The crux of the dispute is about the scope of production of Plaintiff's medical records which Plaintiff contends is overbroad and overly invasive of her privacy rights.

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the "legitimate and important countervailing interests disclosure serves." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 ("*Williams*").

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams, supra*, 3 Cal.5th at 552. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

Noone suggests that Plaintiff does not, generally, have a legally protected privacy interest in the Subpoenaed Medical Records. The issue is the weighing of those interests against the other side's countervailing interests in obtaining discovery that may lead to the discovery of admissible evidence

relevant to Plaintiff's claims and contentions in this litigation.

Having considered the parties' respective positions as outlined in the Joint Statement, as well as all other pleadings filed, the Court finds that the Subpoenaed Medical Records, as written, is excessively broad.

The Court concludes, in weighing the competing interests in light of the totality of the circumstances, that it is just and appropriate to limit the scope of the Subpoenaed Medical Records as discussed below.

Scope of Production

The custodian of records for the medical provider shall produce records responsive to the Subpoenaed Medical Records ONLY to the following extent:

1. All Subpoenaed Medical Records from January 1, 2022 to present; and
2. All Subpoenaed Medical Records from January 1, 2018 through December 31, 2021 relating to (i) the presentation, diagnosis or treatment of mental or emotional health conditions, including anxiety, depression, PTSD, sleep disturbance, and cognitive issues and/or (ii) the presentation, diagnosis or treatment of gastrointestinal or stress-related conditions.

The Motion to Quash is granted to the extent that the Court limits the production of Subpoenaed Medical Records to the foregoing records. Code Civ. Proc. § 1987.1 (court "may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders."); see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 14.22.

Protective Order

Any and all records produced pursuant to this order shall be subject to the Protective Order approved by the Court and filed February 2, 2026 and handled by the litigants in accordance with its terms and conditions.

Sanctions

No party has sought the imposition of sanctions. The Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling or considering the imposition of sanctions for non-compliance.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Quash is **GRANTED IN PART** as specified above.
2. The Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling.
3. Moving party to prepare the order after hearing.